

against the land itself (*f*). Parties out of the jurisdiction may now be served abroad, but this does not extend the jurisdiction of the Court in respect of relief (*g*).

5. While the Court will, to this extent, administer *equities*, and enforce *contracts* as to lands abroad, so far as the Court, by acting upon the parties, can give effect to the decree, there are cases where the foreign law presents an insuperable obstacle to the execution of the decree, and then the Court will not make a decree which would be nugatory (*h*).

6. **Trusts of lands abroad.**—The better opinion is that *trusts*,¹ not constructively such, like natural equities or equi-

(*f*) *Norris v. Chambres*, 29 Beav. 246; 3 De G. F. & J. 583; [and see *Re Hawthorne*, 23 Ch. D. 743.]

(*g*) *Cookney v. Anderson*, 31 Beav. 452. In this case the court said that to found the jurisdiction either the persons against whom the relief was sought must be within the jurisdiction, or the subject matter in dispute must be within those limits, or the contract must have been entered into or intended to be performed within the same limits; *ib.* And see *Mauder v. Lloyd*,

2 J. & H. 718; *Edwards v. Warden*, 9 L. R. Ch. App. 495; [and see the rules of the Supreme Court, 1883, Order xi. R. 1.]

(*h*) *Waterhouse v. Stansfield*, 9 Hare, 234; 10 Hare, 254; *Carteret v. Petty*, 2 Swans. 323, note (a), and 2 Ch. Ca. 214, the case not of a *contract* as in *Penn v. Lord Baltimore*, but of a *partition* which the court had no means of carrying into effect; and see *Norris v. Chambres*, 29 Beav. 246.

¹ Where a trust is created by will, the residence of the trustee and *cestui que trust* out of the state will not remove the control of it from the court; *Chase v. Chase*, 2 Allen, 101; *Curtis v. Smith*, 60 Barb. 9; a trustee appointed by a court can sue only within its jurisdiction, but a trustee named by a settlor may sue in any court having jurisdiction over the parties or property; *Curtis v. Smith*, 6 Blatch. 537; a court may make a decree *in personam* if the parties are present; *Mead v. Merritt*, 2 Paige, 404; *White v. White*, 7 Gill & J. 208; and it is enough if the person against whom the decree is made is found and served within the jurisdiction; *Woodward v. Schatzell*, 3 Johns. Ch. 412; *Mitchell v. Bunch*, 2 Paige, 606; *Chalmers v. Hack*, 19 Me. 124; if neither person or property is within the jurisdiction of the court, no action will be taken; *Booth v. Clark*, 17 How. 322; *Bank v. Adams*, 1 Pars. Eq. 547; *Hawley v. James*, 7 Paige, 213; *Walker v. Ogden*, 1 Dana, 252; courts having jurisdiction over the parties may by injunction prevent their proceeding elsewhere, and hold them for contempt if they ignore it; *Dehon v. Foster*, 4 Allen, 545; *Beal v. Burchstead*, 10 Cush. 523; *Moody v. Gay*, 15 Gray, 457; *Bank v. Rutland*, 28 Vt. 470; *Cage v. Cassidy*, 23 How. 109; *Great Falls Mfg. Co. v. Worster*, 23 N. H. 470; *Pearce v. Olney*, 20 Conn. 544; *Story, Eq. Jur.* §§ 899, 900; *Briggs v. French*, 1 Sumn. 504; but where courts of different states have concurrent jurisdiction, the parties may exercise their choice; *M'Kim v. Voorhies*, 7 Cranch, 279; *English v. Miller*, 2 Rich. Eq. 320; *Coster v. Griswold*, 4 Edw. Ch. 377; *Craft v. Lathrop*, 2 Wall. Jr. 103; *Bicknell v. Field*, 8 Paige, 440; *Vail v. Knapp*, 49 Barb. 299.